

Plaintiff complains that TPMG identified supporting documents by Bates numbers but documents contain no Bates numbers. If this is accurate, TPMG must produce the documents as intended—with the Bates numbers that the Court assumes were inadvertently omitted.

Form Interrogatory No. 209.2

Although Plaintiff initially sought a wider range of employee complaints, it appears that Plaintiff agrees that a narrowing of the scope of inquiry is appropriate here. Plaintiff argues that TPMG has nevertheless improperly narrowed that inquiry from “same or similar” claims involving the same “decisionmakers and investigators” to “same” claims involving the “same decisionmakers.” If Plaintiff seeks additional searches, it must provide some specificity so that TPMG may make appropriate and accurate inquiries as to “similar claims.” Once that clarification is provided, TPMG must provide supplemental responses relating to the same decisionmakers and investigators.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests \$4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties’ arguments, and the scope of the meet and confer process, the Court will order \$500 in sanctions for this Motion, payable within 30 calendar days of this order.

7. 9:00 AM CASE NUMBER: C23-02891

CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS**

FILED BY: CLINTON, TAKENYA B.

TENTATIVE RULING:

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff’s Requests for Production of Documents – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG’s supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in Plaintiff’s opening brief that are not addressed (either specifically or by category) in Plaintiff’s reply brief are no longer in dispute.

Request for Production of Documents Nos. 80-109, 277, 278, 282

For these requests, TPMG states that it will supplement but Plaintiff states that no supplemental documents or privilege log have been produced as of the date of Plaintiff's reply brief. TPMG must produce relevant, responsive documents.

It also appears that TPMG has restricted its production of Plaintiff's wage and schedule records to 2018 to the present, given the statute of limitations. There is no cognizable substantial burden to production of these records from 2016 (when Plaintiff began her employment) to the present. They are potentially relevant and must be produced.

Request for Production of Documents Nos. 62-65

TPMG has produced documents in PDF format and Plaintiff requests native format. Plaintiff properly points—without citation, however—to Code of Civil Procedure 2031.280. Neither party has presented any argument regarding usability or burden. Plaintiff requested documents produced in native format and TPMG has not explained its objection.

Privilege Log

TPMG has made several claims of privilege and work product but appears not to have produced a privilege log. TPMG must produce a privilege log forthwith.

Organizational Chart

Plaintiff complains that TPMG has failed to produce an organizational chart for the full period of Plaintiff's employment. The Court agrees that such organizational chart—for the portion of Defendant's business that is relevant to Plaintiff—must be produced.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests \$4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties' arguments, and the scope of the meet and confer process, the Court will order \$2000 in sanctions for this Motion, payable within 30 calendar days of this order.

8. 9:00 AM CASE NUMBER: C24-02737
CASE NAME: VANESSA MIGUEL VS. CONGREGATION B'NAI SHALOM OF CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT**
FILED BY: MIGUEL , VANESSA
TENTATIVE RULING:

Plaintiffs Vanessa Miguel and Melissa Maricich move for approval of the settlement of their PAGA